

[doc. web n. 10065732]

Decision of September 12, 2024

Register of Decisions

n. 547 of September 12, 2024

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting held today, attended by

Prof. Pasquale Stanzione, President, Prof.

Ginevra Cerrina Feroni, Vice President, Dr.

Agostino Ghiglia, and Attorney Guido Scorza, members, and

Secretary General Fabio Mattei;

HAVING REGARD to Regulation (EU) 2016/679 of the European Parliament

and of the Council of April 27, 2016, concerning

the protection of natural persons with regard to

the processing of personal data, as well as the free

movement of such data, and repealing Directive

95/46/EC, "General Data Protection Regulation" (hereinafter, "Regulation");

HAVING REGARD to Legislative Decree No. 196 of June 30, 2003, containing

"Code regarding the protection of personal data,

containing provisions for the adaptation

of the national legal system to Regulation (EU)

2016/679 of the European Parliament and of the Council, of

April 27, 2016, concerning the protection of

natural persons with regard to the processing of personal data,

as well as the free movement of such data, and repealing Directive 95/46/EC (hereinafter

"Code");

HAVING REGARD to Regulation No. 1/2019 concerning

internal procedures of external relevance,

aimed at carrying out the tasks and

exercising the powers entrusted to the Guarantor for the

protection of personal data, approved by

Resolution No. 98 of April 4, 2019, published in

G.U. No. 106 of May 8, 2019 and on www.gpdp.it, doc.

web n. 9107633 (hereinafter "Guarantor Regulation

No. 1/2019");

HAVING REGARD to the documentation on file;

HAVING REGARD to the observations made by the Secretary

General pursuant to Article 15 of the Guarantor's

Regulation No. 1/2000 on the organization and

functioning of the office of the Guarantor for the

protection of personal data, doc. web n. 1098801;

Reporting Attorney Guido Scorza;

PREMISE

1. Introduction.

With a complaint submitted pursuant to Article 77 of

the Regulation, Mr. XX, a military member

of the Carabinieri Corps, has reported certain

alleged violations of the regulations regarding

the protection of personal data by the Order

of Nursing Professions (OPI) of Gorizia

(hereinafter, the "Order").

In particular, the complainant stated that he learned that, on XX, at the Command

Legion where he serves (hereinafter, the "Command

Legion"), a certified email message was received,

containing an attachment with the subject "Report of conduct [name and surname of the complainant]," signed by the President of the Order, the President of the OPI of Pordenone (also in the capacity of President of the Coordination of OPIs of Friuli Venezia Giulia – hereinafter, the "Coordination") and by the Presidents of the OPIs of Udine and Trieste. With this note, the Command Legion was informed of the "series of requests for general civic access" and the "multiple reports" that the complainant and his wife had directed to the aforementioned OPIs, as well as information regarding the complainant's wife (profession; registration with the Order) and the assessments expressed by these OPIs regarding the perceived inappropriateness of such requests and reports, considered "largely unfounded and that even from the perspective of the ordinary citizen, have no purpose or utility," having as "the sole purpose [...] that of having requested a great commitment from the administrative offices, the staff, the institutional positions of the Entities and the consultants and professionals who assist them, diverting precious time and also considerable economic resources from the ordinary activities of the Orders." The OPIs have, therefore, "deemed it appropriate to submit to the [Commander of the Command Legion] the conduct of the [complainant], [serving at] the Carabinieri Corps, which always and in any case represents, to avoid creating an obstacle to the institutional activity of the aforementioned professional Orders for mere personal interests [...]", asking him "to take into consideration what [...] has been stated, solely for the purpose of improving relations between State Entities, which should collaborate mutually for the benefit of the citizen and the institutions they represent." According to the complainant, the communication of the aforementioned personal data to the Command Legion, as well as the exchange of such data between the various OPIs belonging to the Coordination, including the Order, would have occurred in the absence of a legal basis. Furthermore, the complainant lamented the circumstance that the Order and the other OPIs forming the Coordination would have unlawfully processed the personal data relating to his profession and his employer, which had never been disclosed by the complainant to them. The complainant also complained of not having received from the Order, at the time of submitting the aforementioned requests for civic access and reports, any information regarding the processing of his personal data, including with regard to the possibility of exercising the rights provided for in Articles 15-22 of the Regulation.

An additional reason for the complaint relates to the fact that the Order did not provide a response to a request to exercise the right of access to personal data, made by the complainant to the Order pursuant to Articles 12 and 15 of the Regulation, with particular regard to the methods "by which [...] the OPI became aware of the data relating to the profession performed."

2. The Investigative Activity.

In response to a request for information from the Authority (see note prot. n. XX of XX), the Order, through its lawyer, stated, in particular, that:

"[...] the [OPI] are non-economic public entities of very small size: the Order [...] has no employees and relies on a voluntary administrative collaborator. There are no managerial figures, and most of the tasks are performed by the President, the Treasurer, and the Secretary, who, in addition to carrying out their profession, provide their services free of charge";

"[...] the complainant has submitted numerous requests for access to the Order [...]";

"the management of such a quantity of requests, appeals, complaints, warnings, and reports from the [complainant] has historically overlapped not only with the normal activities of the Order (registrations, terminations, variations, certifications, professional training, disciplinary proceedings, etc.), but, above all, with the management of the enormous workload resulting from the pandemic crisis and the administrative proceedings for the suspension of unvaccinated nurses, pursuant to DL 44/21 [...] [which] involved dozens and dozens of members";

"[...] in this context, the management of the claims of the [complainant] – regardless of their legitimacy – seriously jeopardized the operational capacity of the Order in the Friuli Venezia Giulia Region, thus compromising the exercise of a public power. There were concrete and serious legal risks for the Presidents, including crimes such as omission of official acts";

"on these premises, the [four] Presidents of the regional Orders, institutionally gathered in the Coordination [...], found themselves compelled by the urgent necessity to find a 'joint' solution to normalize relations with the [complainant], agreeing to activate every possible avenue to find an amicable compromise solution and thus allow the concentration of workforce and resources of the entity on the pressing institutional and organizational activities, at least until the end of the pandemic emergency";

"all of the above outlines both a legitimate interest of the Holder to process the personal data of the [complainant], outside the execution of the organizational tasks typical of public authorities, in the public interest of ensuring the proper functioning of the entity pursuant to Article 97 of the Constitution";

"it is finally specified that the involvement of the Regional Coordinations derives precisely from the fact that they are bodies responsible for managing 'common issues' for the [OPI] of a specific territory (region), by virtue of a Regulation adopted by the National Federation in 2016, which provides for their establishment and regulates their operations [...], published on the institutional website <https://www.fnopi.it/amministrazione-trasparente/disposizionigenerali/atti-general/>";

"in relation to the further personal data of the complainant and, in particular, to the affiliation with the Carabinieri Corps, it is emphasized that in compliance with the principles of lawfulness, fairness, and transparency, the Presidents, in the perspective described above, sought information about the complainant on the web with a simple search on [a search engine]";

"the complainant's affiliation with the Carabinieri Corps is a public fact, resulting from documents, including official ones, that can be accessed and consulted by anyone online, with a simple search by name and without entering any other identifying data, including those provided by the complainant himself";

"[...] the request addressed to the [Legion Command] had the sole purpose of informing the superiors of the conduct of the [complainant], so that they could jointly intervene by raising awareness about the inappropriateness of his initiatives, thus avoiding formal steps against him";

"[...] this is also in light of the Code of Conduct for employees of the Ministry of Defense, from which the Carabinieri Corps depends [...]";

“no personal data was communicated to the Command that it did not already know”;

“other access proceedings pursuant to Legislative Decree 33/2013 by the [complainant] to other public authorities, moreover, are subject to publication by the recipient entities and are available online as public data, with the identification of the requester”;

“the information on the processing of personal data is published on the institutional website of the Order at the following page <https://www.opigorizia.it/it/privacy-policy>. It is specified that the information has been modified compared to the time of the events [...]”;

“the complainant has been able to access this information, both in the case that he obtained the PEC contact of the Order through the institutional website, and in the case that he found it on the IPA website, where the address of the OPI website is duly reported”;

“the complainant was duly responded to regarding the request for information about his personal data processed by the OPI, through communication of XX”.

With note of XX (prot. n. XX), the Office, based on the elements acquired, the checks carried out, and the facts emerged following the investigative activity, notified the Order, pursuant to Article 166, paragraph 5, of the Code, of the initiation of proceedings for the adoption of the measures referred to in Article 58, paragraph 2, of the Regulation, for having the Order:

- processed personal data relating to the profession and employer of the complainant in a manner not compliant with the principle of “lawfulness, fairness and

“transparency” and in the absence of a legal basis, in violation of Articles 5, paragraph 1, letter a), and 6 of the Regulation, as well as Article 2-ter of the Code;

- communicated the personal data of the complainant and their spouse to other OPI in a manner not compliant with the principle of “lawfulness, fairness, and transparency” and in the absence of a legal basis, in violation of Articles 5, paragraph 1, letter a), and 6 of the Regulation, as well as Article 2-ter of the Code;

- communicated to the Command Legion the personal data of the complainant and their spouse, contained in the joint note of the Presidents of the OPIs (prot. no. XX of XX), in a manner not compliant with the principle of “lawfulness, fairness, and transparency” and in the absence of a legal basis, in violation of Articles 5, paragraph 1, letter a), and 6 of the Regulation, as well as Article 2-ter of the Code;

- failed to enter into a joint processing agreement with the other OPIs, in violation of Article 26, paragraphs 1 and 2, of the Regulation;

- failed to provide the complainant and their spouse with information on the processing of personal data, in a manner not compliant with the principle of “lawfulness, fairness, and transparency” and in violation of Articles 5, paragraph 1, letter a), 13 (in relation to data obtained directly from the data subjects) and 14 (in relation to data not obtained directly from the data subjects) of the Regulation;

- failed to respond to the request for the exercise of the right of access made by the complainant, as well as to inform them, without delay, and at the latest within one month of receiving the request, of the reasons for non-compliance and the possibility of lodging a complaint with a supervisory authority and seeking judicial remedy, in violation of Articles 12, paragraphs 3 and 4, and 15, paragraph 1, of the Regulation.

With the same note, the aforementioned data controller was invited to submit written defenses or documents to the Guarantor or to request to be heard by the Authority (Article 166, paragraphs 6 and 7, of the Code, as well as Article 18, paragraph 1, of Law No. 689 of November 24, 1981).

By note dated XX, the Order, through its lawyer, submitted a defensive memorandum, stating, in particular, that:

“the Order [...] is a very small entity, which, according to what is provided by Legislative Decree No. 233/46, Article 1, paragraph 3, letter b), as amended by Law 3/2018, is financed exclusively by contributions from its members”;

“the OPI has provided the complainant with the response referred to in Article 15 of the Regulation,

along with the related privacy notice,” with note dated XX, submitted in the records;

“the seriousness of the violation does not appear to be high, as the processing concerns public data or, in any case, data such that their processing or communication to the complainant's employer could not cause harm in itself”;

“Article 748, paragraph 5, of Presidential Decree 90/2010 (consolidated regulatory text of military legislation)” provides that “the military must also promptly notify their command or entity: a) of any change in civil status and family” and, therefore, “the recipient of the communication was already informed of the civil status of the data subject”;

“the data processed do not fall into the category of 'special' data, nor do they relate to criminal records.”

During the hearing, requested pursuant to Article 166, paragraph 6, of the Code and held on XX (see verbatim prot. no. XX of XX), the Order stated, in particular, that:

“the incident subject to the complaint occurred in the difficult context of the SARS-CoV-2 epidemic, in which the Order, being a non-economic public entity with a limited organizational structure and limited financial resources, had to face numerous and burdensome obligations provided for by emergency regulations, having to make delicate decisions, in very rapid times, in a legal framework characterized by high legal complexity. In particular, the Order had to process numerous proceedings aimed at verifying the possession of the vaccination requirement by professionals registered pursuant to Article 4 of Decree Law 44/2021;

the Order [...] is the smallest of the provincial Orders in the Region and during the emergency period had to cope with an excessive workload, relying on only one collaborator who provides their services on a voluntary basis. In this very difficult context, the President of the Order had to personally handle numerous administrative obligations, including extraordinary activities, with inevitable repercussions on the management times of some proceedings, including those related to the numerous requests submitted by the complainant.”

3. Outcome of the investigative activity.

3.1 The processing of personal data relating to the profession and employer of the complainant. Public entities, in accordance with the principle of "lawfulness, fairness, and transparency" (Article 5, paragraph 1, letter a), of the Regulation), may, as a rule, process personal data if the processing is necessary to comply with a legal obligation or for the performance of a task carried out in the public interest or related to the exercise of public powers (see Articles 6, paragraph 1, letters c) and e), and paragraphs 2 and 3 of the Regulation, as well as Article 2-ter of the Code).

In this case, the Order obtained information regarding the profession of the complainant by querying a search engine and consulting publicly available documents on the Internet. Such online search operations, consultation, and registration of information related to the

****Profession and Employer of the Claimant****

Constitute personal data processing (see art. 4, nos. 1 and 2 of the Regulation), which, however, cannot be considered necessary for the purposes of the administrative proceedings related to the requests for civic access and the reports submitted by the claimant to the Order, regardless of the fact that such information was available on the Internet due to its publication by the interested party or third parties for other purposes not related to the institutional functions of the Order (see provisions of November 24, 2022, no. 385, web doc no. 9839018; March 10, 2022, no. 82, web doc no. 9761383; January 13, 2022, no. 7, web doc no. 9745807; July 2, 2020, no. 118, web doc no. 9440025; February 13, 2020, no. 35, web doc no. 9285411).

The Order has, therefore, processed the personal data related to the profession and employer of the claimant in a manner that is not compliant with the principle of "lawfulness, fairness, and transparency" and in the absence of a legal basis, in violation of articles 5, paragraph 1, letter a), and 6 of the Regulation, as well as 2-ter of the Code.

****3.2 Communication of Personal Data to Other OPI of Friuli-Venezia Giulia****

From the documentation in the records and the statements made during the investigation, it is also established that the Order shared with other OPIs of Friuli-Venezia Giulia the information related to the requests for civic access and the reports submitted by the claimant and his spouse, carrying out a processing of personal data that cannot be considered necessary for the purposes of the proceedings initiated in relation to the aforementioned requests for access and reports.

In this regard, it should be noted, with considerations that apply to the overall processing of personal data subject to complaint, that the defense argument of the Order, according to which "the access proceedings under Legislative Decree 33/2013 [...] are subject to publication by the recipient entities and are available online as public data, with the identification of the requester," cannot be accepted. As clarified by the National Anti-Corruption Authority (ANAC) in its Guidelines adopted in agreement with the Guarantor, the "register [of access requests, where established,] contains the list of requests with the subject and date and the related outcome with the date of the decision and is published, obscuring any personal data that may be present [...]" (paragraph 9 of Determination no. 1309 of 28/12/2016 containing the "Guidelines providing operational indications for the definition of exclusions and limits to civic access under art. 5, paragraph 2 of Legislative Decree 33/2013," in G.U. no. 7 of 10/1/2017 and at <https://www.anticorruzione.it/-/determinazione-n.-1309-del-28/12/2016-rif.-1>; see also paragraph 8.2.b. of the Circular of the Minister for Public Administration no. 1 of 2019, containing "Implementation of the rules on generalized civic access (so-called FOIA)," at http://www.funzionepubblica.gov.it/sites/funzionepubblica.gov.it/files/Circolare_FOIA_n_1_2019.pdf).

The Order has, therefore, communicated the personal data of the claimant and his spouse to the aforementioned OPIs in a manner that is not compliant with the principle of "lawfulness, fairness, and transparency" and in the absence of a legal basis, in violation of articles 5, paragraph 1, letter a), and 6 of the Regulation, as well as 2-ter of the Code.

****3.3 Communication to the Command Legion of the Personal Data of the Claimant and His Spouse Contained in the Joint Note of the Presidents of the OPIs of Friuli Venezia Giulia****

With note prot. no. XX of XX, signed by the President of the Order, the President of the OPI of Pordenone (also in the capacity of President of the Coordination) and the Presidents of the OPIs of Udine and Trieste, and addressed to the Command Legion, where the claimant performs his work activity, the Order communicated to the Command Legion some personal data of the claimant, namely information related to the requests for documentary access and the reports submitted by the claimant to the aforementioned OPIs and other public entities, the evaluations of the OPIs regarding the appropriateness of such requests and reports, and the overall conduct of the claimant, as well as information related to the marital relationship existing between the claimant and a professional registered with the Order.

With the note in question, personal data related to the claimant's spouse were also communicated to the Command Legion, particularly regarding the fact that she had also submitted requests for access and reports, as well as the marital relationship existing with the claimant.

That said, it should be noted that the communication to the Command Legion of the personal data in question cannot be considered necessary to fulfill legal obligations or to perform a task in the public interest or related to the exercise of public powers (see articles 6, paragraph 1, letters c) and e), and paragraphs 2 and 3 of the Regulation, as well as 2-ter of the Code).

Indeed, the argument of the Order, according to which such processing of personal data would have been necessary for the pursuit of the legitimate interest of the Order to ensure the proper functioning of its administrative action (see art. 97 of the Constitution), cannot be accepted. This is because the legal basis of legitimate interest, as per article 6, paragraph 1, letter f), of the Regulation, "does not apply to the processing of data carried out by public authorities in the execution of their tasks" (article 6, paragraph 1, last sentence, of the Regulation). In this regard, the Court of Justice of the European Union has stated that "from the wording of article 6, paragraph 1, second subparagraph, of the

[Regulation], it is clear that a processing of personal data carried out by a public authority in the context of the execution of their tasks..."

processing of personal data, information regarding the processing in a concise, transparent, intelligible, and easily accessible form, using clear and plain language. This information must include, at a minimum, the identity and contact details of the data controller, the purposes of the processing, the legal basis for the processing, and the recipients of the personal data (art. 13, par. 1, of the Regulation).

In the case at hand, the Order failed to provide the complainant and their spouse with the necessary information regarding the processing of their personal data, thereby violating the principles of "lawfulness, fairness, and transparency" as established in the Regulation. The lack of such information constitutes a breach of the obligations set forth in articles 5, par. 1, lett. a), and 13 of the Regulation, as well as article 2-ter of the Code.

3.6 The absence of a data protection impact assessment.

According to article 35, par. 1, of the Regulation, a data protection impact assessment (DPIA) is required when a type of processing is likely to result in a high risk to the rights and freedoms of natural persons. The DPIA must assess the necessity and proportionality of the processing and help manage the risks to the rights of data subjects.

In this instance, the Order and the other OPI did not conduct a DPIA prior to the processing of the complainant's and their spouse's personal data, despite the high risks associated with the processing of sensitive personal data. This omission constitutes a violation of article 35 of the Regulation, which requires that such assessments be carried out to ensure compliance with data protection principles and to mitigate risks to individuals.

4. Conclusion.

In light of the aforementioned violations of the Regulation and the Code, it is evident that the processing of personal data carried out by the Order and the other OPI was not in compliance with the applicable legal framework. The lack of a valid legal basis, the failure to establish a co-controller agreement, the omission of necessary information, and the absence of a DPIA all contribute to a significant breach of data protection obligations.

Therefore, it is imperative that corrective measures be taken to address these violations and to ensure that future processing activities are conducted in accordance with the principles of data protection as outlined in the Regulation and the Code.

processing, all the information required by the Regulation, in a concise, transparent, intelligible, and easily accessible form, using simple and clear language (see Articles 5, paragraph 1, letter a), 12, 13, and 14 of the Regulation; cf. Article 29 Working Party, "Guidelines on Transparency under Regulation 2016/679", WP260 rev.01, adopted on April 11, 2018, and endorsed by the European Data Protection Board with "Endorsement 1/2018" of May 25, 2018).

In this case, the Order has, instead, failed to inform the complainant and their spouse regarding the personal data processing described above.

In this regard, it should be noted that the privacy notice regarding the processing of personal data published on the official website of the Order (see Annex 8 to the note of XX) refers to the processing of personal data of users of that website, and is therefore irrelevant to the personal data processing that is the subject of the complaint. Nor does it appear that the Order had published a general notice on its website regarding the processing of personal data carried out in the context of the performance of its institutional duties and administrative activities, to which the complainant could have referred.

The Order has consequently acted in a manner inconsistent with the principle of "lawfulness, fairness, and transparency" and in violation of Articles 5, paragraph 1, letter a), 13 (in relation to data obtained directly from the data subjects) and 14 (in relation to data not obtained directly from the data subjects) of the Regulation.

3.6 Response to the data subject's request to exercise the right of access to personal data.

Article 12 of the Regulation provides that the data controller must provide the data subject with information regarding the action taken in response to a request under Articles 15 to 22 of the Regulation without undue delay and, in any case, no later than one month from the receipt of the request (paragraph 3).

If the data controller does not comply with the request of the data subject, they must inform the data subject without delay, and no later than one month from the receipt of the request, of the reasons for non-compliance and the possibility of lodging a complaint with a supervisory authority and seeking judicial remedy (paragraph 4).

From the complaint and the documentation attached to it, it emerges that, on XX, the data subject submitted a request to the Order, pursuant to Articles 12 and 15 of the Regulation, for access to their personal data and the information referred to in Article 15, paragraph 1, of the Regulation.

The Order has stated that it responded to the aforementioned request “by means of communication dated XX,” attaching (see Annex 10 to the note of XX) a copy of a note dated XX, with protocol no. XX (reasonably to be understood as “XX”) regarding “access to administrative documents,” with which the Order, following “note no. XX of XX from the Commission for access to administrative documents,” provided the data subject with “all documentation concerning them.”

That said, it should be noted that the note in question does not pertain to the request for access to personal data submitted by the complainant on XX, but rather to a request for access to administrative documents submitted by the same complainant pursuant to Law 241/1990.

The Order has also failed to provide the data subject with the information required under letters a) to h) of Article 15, paragraph 1, of the Regulation. Moreover, in the access request in question, the data subject had expressed their particular interest in obtaining “the information, if held, regarding their employment status and the profession performed, naturally communicating, also for this type of data, the source of the same (i.e., the subject or specific source from which it was obtained)” (see access request attached to the complaint; see note from the complainant dated XX, cited, where it is stated that in the aforementioned note dated XX “nothing is indicated regarding the communications between the OPI of Gorizia and the other regional OPIs”).

By failing to respond to the data subject's request to exercise the right of access, the Order has therefore acted in violation of Articles 12, paragraph 3, and 15, paragraph 1, of the Regulation.

Furthermore, since the Order did not inform the data subject without delay, and no later than one month from the receipt of the request, of the reasons for non-compliance and the possibility of lodging a complaint with a supervisory authority and seeking judicial remedy, the Order has also violated Article 12, paragraph 4, of the Regulation.

4. Conclusions.

In light of the above assessments, it is noted that the statements made by the data controller during the investigation – for which they may be held accountable under Article 168 of the Code – while deserving of consideration, do not allow for overcoming the objections notified by the Office with the initiation of the procedure and are insufficient to allow for the closure of the present procedure, as none of the cases provided for by Article 11 of the Garante Regulation no. 1/2019 apply.

Therefore, the preliminary assessments of the Office are confirmed, and the unlawfulness of the personal data processing carried out by the Order is noted, having acted in violation of Articles 5, paragraph 1, letter a), 6, 12, paragraphs 3 and 4, 13, 14, 15, paragraph 1, and 26, paragraphs 1 and 2, of the Regulation, as well as Article 2-ter of the Code.

Considering that the violation of the aforementioned...

provisions occurred as a result of a single conduct (same treatment or treatments connected to each other), Article 83, paragraph 3, of the Regulation applies, according to which the total amount of the administrative pecuniary sanction does not exceed the amount specified for the most serious violation.

Considering that, in this case, the most serious violations, which are multiple, related to Articles 5, paragraph 1, letter a), 6, 12, paragraphs 3 and 4, 13, 14, and 15, paragraph 1, of the Regulation, as well as Article 2-ter of the Code, are subject to the sanction provided for by Article 83, paragraph 5, of the Regulation, as also referred to by Article 166, paragraph 2, of the Code, the total amount of the sanction is to be quantified up to €20,000,000.

In this context, considering, in any case, that the conduct has exhausted its effects, given that the Order has declared that it has provided the interested party with a response to the request to exercise the right of access to personal data pursuant to Article 15 of the Regulation, albeit after the notification by the Authority of the administrative violation contestation, the conditions for the adoption of further corrective measures under Article 58, paragraph 2, of the Regulation do not exist.

5. Adoption of the injunction order for the application of the administrative pecuniary sanction and accessory sanctions (Articles 58, paragraph 2, letter i, and 83 of the Regulation; Article 166, paragraph 7, of the Code).

The violation of the cited provisions is subject to the application of an administrative pecuniary sanction pursuant to the combined provisions of Articles 58, paragraph 2, letter i), and 83, paragraph 5, of the Regulation. The administrative pecuniary sanction imposed, depending on the circumstances of each individual case, must be determined in amount taking into due account the elements provided for by Article 83, paragraph 2, of the Regulation.

Considering that:

the violation concerning the unlawful communication of the complainant's personal data to the Legion Command, where the complainant performs his work activity, is characterized by particular seriousness, considering the possible repercussions for the interested party in the workplace (cf. Article 83, paragraph 2, letter a), of the Regulation);

although in order to preserve the effectiveness and efficiency of the administrative action, deemed compromised by the repeated requests for civic access and the reports submitted by the complainant and his wife, moreover during a period when the Order was particularly burdened by the obligations related to the verification of the vaccination requirement for healthcare professionals (no longer required following the issuance of Decree Law No. 162 of October 31, 2022, and starting from November 1, 2022), the Order has exceeded its institutional competencies (cf. Article 83, paragraph 2, letter b), of the Regulation);

the processing did not involve data belonging to special categories as referred to in Article 9 of the Regulation or data related to offenses as referred to in Article 10 of the Regulation (cf. Article 83, paragraph 2, letter g), of the Regulation),

it is believed that, in this case, the level of seriousness of the violation committed by the data controller is medium (cf. European Data Protection Board, "Guidelines 4/2022 on the calculation of administrative pecuniary sanctions pursuant to the GDPR" of May 24, 2023, point 60).

That said, it is considered that, for the purposes of quantifying the sanction, the following circumstances should be taken into account:

the Order has offered good cooperation with the Authority during the investigation (Article 83, paragraph 2, letter f), of the Regulation);

there are no previous relevant violations committed by the Order (Article 83, paragraph 2, letter e), of the Regulation).

By reason of the aforementioned elements, evaluated in their entirety, and considering that the Order is a small public entity, with limited financial and organizational resources, it is deemed appropriate to determine the amount of the pecuniary sanction at €5,000 (five thousand) for the violation of Articles 5, paragraph 1, letter a), 6, 12, paragraphs 3 and 4, 13, 14, 15, paragraph 1, and 26, paragraphs 1 and 2, of the Regulation, as well as Article 2-ter of the Code, as an administrative pecuniary sanction deemed, pursuant to Article 83, paragraph 1, of the Regulation, effective, proportionate, and dissuasive.

Considering that, as highlighted above, the Order communicated the personal data in question to the

complainant's employer, with potential repercussions for him in the workplace, and that, therefore, the processing involved in this context a vulnerable subject (cf. Recital 75 and Article 88 of the Regulation and "Guidelines on Data Protection Impact Assessment and the criteria for determining whether processing 'presents a high risk' under Regulation 2016/679", WP 248 of April 4, 2017), it is also believed that the accessory sanction of publication on the Authority's website of this provision, provided for by Article 166, paragraph 7 of the Code and Article 16 of the Authority's Regulation No. 1/2019, should be applied.

Finally, it is noted that the conditions referred to in Article 17 of Regulation No. 1/2019 exist.

ALL OF THE ABOVE HAVING BEEN STATED, THE AUTHORITY

declares, pursuant to Article 57, paragraph 1, letter f), of the Regulation, the unlawfulness of the processing carried out by the Order of Nursing Professions of Gorizia, for violation of Articles 5, paragraph 1, letter a), 6, 12, paragraphs 3 and 4, 13, 14, 15, paragraph 1, and 26, paragraphs 1 and 2, of the Regulation, as well as Article 2-ter of the Code, in the terms set forth in

****Motivation,****

****ORDERS****

the Order of Nursing Professions of Gorizia, represented by the legal representative pro tempore, with registered office at Via XXIV Maggio, 1 - 34170 Gorizia (GO), Tax Code 80006770319, to pay the sum of €5,000 (five thousand) as an administrative pecuniary sanction for the violations indicated in the motivation. It is stated that the offender, pursuant to Article 166, paragraph 8, of the Code, has the option to resolve the dispute by payment, within 30 days, of an amount equal to half of the imposed sanction;

****ORDERS****

the aforementioned Order, in case of failure to resolve the dispute pursuant to Article 166, paragraph 8, of the Code, to pay the sum of €5,000 (five thousand) according to the methods indicated in the attachment, within 30 days from the notification of this provision, under penalty of the adoption of subsequent executive acts in accordance with Article 27 of Law No. 689/1981;

****PROVIDES****

- the publication of this provision on the website of the Guarantor pursuant to Article 166, paragraph 7, of the Code (see Article 16 of the Guarantor Regulation No. 1/2019);
- the annotation of this provision in the internal register of the Authority, as provided by Article 57, paragraph 1, letter u), of the Regulation, of the violations and measures adopted in accordance with Article 58, paragraph 2, of the Regulation (see Article 17 of the Guarantor Regulation No. 1/2019).

Pursuant to Articles 78 of the Regulation, 152 of the Code, and 10 of Legislative Decree No. 150/2011, it is possible to appeal against this provision before the ordinary judicial authority, under penalty of inadmissibility, within thirty days from the date of communication of the provision itself or within sixty days if the appellant resides abroad.

Rome, September 12, 2024

THE PRESIDENT

Stanzione

THE REPORTER

Scorza

THE SECRETARY GENERAL

Mattei